

AMENDMENTS TO THE CALIFORNIA RULES OF COURT

Adopted by the Judicial Council on February 20, 2014

effective on February 20, 2014

Rule 4.530. Intercounty transfer of probation and mandatory supervision cases	2
Rule 10.10. Judicial Council internal committees	2
<u>Rule 10.16. Technology Committee</u>	2
Rule 10.30. Judicial Council advisory bodies.....	4
Rule 10.34. Duties and responsibilities of advisory committees	4
Rule 10.48. Court Executives Advisory Committee.....	5
Rule 10.49. Conference of Court Executives	8
Rule 10.55. Access and Fairness Advisory Committee <u>on Providing Access</u> <u>and Fairness</u>	9
<u>Rule 10.62. Court Facilities Advisory Committee</u>	11
<u>Rule 10.63. Advisory Committee on Financial Accountability and Efficiency for the</u> <u>Judicial Branch</u>	12
<u>Rule 10.64. Trial Court Budget Advisory Committee</u>	13
Rule 10.960. Court self-help centers.....	14

1 **Rule 4.530. Intercounty transfer of probation and mandatory supervision cases**

2
3 **(a) Application**

4
5 This rule applies to intercounty transfers of probation and mandatory supervision
6 cases under Penal Code section 1203.9. ~~It does not apply to transfers of cases in~~
7 ~~which probation has been granted under Penal Code section 1210.1.~~

8
9 *(Subd (a) amended effective February 20, 2014; previously amended effective November 1,*
10 *2012.)*

11
12 **(b)–(g) * * ***

13
14 *Rule 4.530 amended effective February 20, 2014; adopted effective July 1, 2010; previously*
15 *amended effective November 1, 2012.*

16
17 **Rule 10.10. Judicial Council internal committees**

18
19 **(a) Judicial Council internal committees**

20
21 The internal committees are:

22
23 **(1)–(2) * * ***

24
25 **(3) Rules and Projects Committee; and**

26
27 **(4) Litigation Management Committee; and**

28
29 **(5) Technology Committee.**

30
31 *(Subd (a) amended effective February 20, 2014; adopted effective August 14, 2009.)*

32
33 **(b)–(g) * * ***

34
35 *Rule 10.10 amended effective February 20, 2014; adopted as rule 6.10 effective January 1, 1999;*
36 *previously amended and renumbered effective January 1, 2007; previously amended effective*
37 *August 14, 2009.*

38
39 **Rule 10.16. Technology Committee**

40
41 **(a) Technology policies**

1 The Technology Committee oversees the council’s policies concerning information
2 technology. The committee is responsible for determining that council policies are
3 complied with on specific projects approved and funded by the council and that
4 those projects proceed on schedule and within scope and budget.

5
6 **(b) Coordination**

7
8 The committee coordinates the activities of the Administrative Director of the
9 Courts, council internal committees and advisory committees, the courts, justice
10 partners, and stakeholders on matters relating to court information technology. The
11 committee also, in collaboration or consultation with the Policy Coordination and
12 Liaison Committee, coordinates with other branches of government on information
13 technology issues.

14
15 **(c) Reports**

16
17 The committee seeks reports and recommendations from the Administrative
18 Director, the courts, and stakeholders on information technology issues. It ensures
19 that information technology reports to the council are clear, are comprehensive, and
20 provide relevant options so that the council can make effective final information
21 technology policy decisions.

22
23 **(d) Technology needs, standards, and systems**

24
25 The committee will, in partnership with the courts, develop timelines and
26 recommendations to the council for:

- 27
- 28 (1) Establishing an approach and vision for implementing information
29 technology that serves the courts, litigants, attorneys, justice partners, and the
30 public, while considering available resources and information technology
31 needs;
 - 32
 - 33 (2) Improving judicial branch information technology governance to best serve
34 the implementation of technological solutions;
 - 35
 - 36 (3) Establishing a strategic information technology plan for the judicial branch
37 and the courts;
 - 38
 - 39 (4) Developing information technology standards; and
 - 40
 - 41 (5) Developing standardized requests for proposals, identifying appropriate
42 vendors, and encouraging the courts to leverage their collective economic
43 purchasing power in acquiring technological systems.

1
2 **(e) Oversight of advisory committees and task forces**

3
4 For those advisory committees and task forces over which it has been assigned
5 oversight by the Chief Justice, the Technology Committee ensures that the
6 activities of each are consistent with the council's goals and policies. To achieve
7 these outcomes, the committee:

- 8
9 (1) Communicates the council's annual charge to each; and
10
11 (2) Reviews an annual agenda for each to determine whether the annual agenda
12 is consistent with its charge and with the priorities established by the council.
13

14 *Rule 10.16 adopted effective February 20, 2014.*

15
16 **Rule 10.30. Judicial Council advisory bodies**

17
18 **(a)–(b) * * ***

19
20 **(c) Subcommittees**

21
22 With the approval of the internal committee with oversight responsibility for the
23 advisory body, an advisory body may form subcommittees, composed entirely of
24 members, to carry out the body's duties, subject to available resources.
25

26 *(Subd (c) amended effective February 20, 2014; adopted effective August 14, 2009.)*

27
28 **(d)–(g) * * ***

29
30 *Rule 10.30 amended effective February 20, 2014; adopted as rule 6.30 effective January 1, 1999;*
31 *previously amended and renumbered effective January 1, 2007; previously amended effective*
32 *September 1, 2003 and August 14, 2009.*
33

34 **Rule 10.34. Duties and responsibilities of advisory committees**

35
36 **(a)–(e) * * ***

37
38 **(f) Review of annual agendas**

39
40 (1)–(2) * * *

- 41
42 (3) ~~An advisory committee may~~ To pursue matters in addition to those specified
43 in its annual charge, an advisory committee must have the approval of the

1 internal committee with oversight responsibility for the advisory committee.
2 ~~as long as~~ The matters ~~are~~ must be consistent with the advisory committee's
3 general charge, as set forth in the rules of court, its approved annual agenda,
4 and the council's long-range strategic plan. The additional matters must also
5 be within the committee's authorized budget and available resources, as
6 specified by the council or the Administrative Director of the Courts.

7
8 *(Subd (f) amended effective February 20, 2014; adopted effective August 14, 2009.)*
9

10 *Rule 10.34 amended effective February 20, 2014; adopted as rule 6.34 effective January 1, 1999,*
11 *and September 1, 2003; previously amended and renumbered effective January 1, 2007;*
12 *previously amended effective January 1, 2002, and August 14, 2009.*
13

14 **Rule 10.48. Court Executives Advisory Committee**

15
16 **(a) * * ***
17

18 **(b) Additional duties**

19
20 In addition to the duties specified in rule 10.34, the committee must:

21
22 **(1)–(3) * * ***
23

24 **(4)** Suggest methods and policies to increase communication between the council
25 and the trial courts; and

26
27 ~~**(5)** Serve as the Executive Committee for the Conference of Court Executives, as~~
28 ~~described in rule 10.49; and~~
29

30 ~~**(6)**~~**(5)** Meet periodically with the Administrative Office of the Courts' ~~directors~~
31 executive team to enhance branch communications.
32

33 *(Subd (b) amended effective February 20, 2014; previously amended effective January 1,*
34 *2004, and January 1, 2007.)*
35

36 ~~**(c) Consultation with the Conference of Court Executives**~~

37
38 ~~To assist it in formulating proposals and recommendations to the council, the~~
39 ~~committee may seek the advice of the Conference of Court Executives.~~
40

41 ~~**(d)**~~**(c) Membership**

The committee consists of the ~~following members~~; court executive officer of each superior court.

- ~~(1) Nine executive officers from trial courts that have 48 or more judges;~~
- ~~(2) Four executive officers from trial courts that have 16 to 47 judges;~~
- ~~(3) Two executive officers from trial courts that have 6 to 15 judges;~~
- ~~(4) Two executive officers from trial courts that have 2 to 5 judges;~~
- ~~(5) One member from the six clerk/administrators of the Courts of Appeal selected from three nominations made by the Appellate Court Clerks Association; and~~
- ~~(6) One at-large member appointed from the trial courts by the committee chair to a one-year term.~~

(Subd (c) amended effective February 20, 2014; adopted as subd. (d); previously amended effective January 1, 2004, and January 1, 2007.)

(d) Executive Committee

The advisory committee may establish an Executive Committee that, in addition to other powers provided by the advisory committee, acts on behalf of the full advisory committee. To assist it in formulating proposals and making recommendations to the council, the Executive Committee may seek the advice of the advisory committee. The Executive Committee consists of the following members:

- (1) The nine court executive officers or interim/acting court executive officers from the nine trial courts that have 48 or more judges;
- (2) Four court executive officers from trial courts that have 16 to 47 judges;
- (3) Two court executive officers from trial courts that have 6 to 15 judges;
- (4) Two court executive officers from trial courts that have 2 to 5 judges; and
- (5) One court executive officer from the trial courts as an at-large member appointed by the committee chair to a one-year term.

(Subd (d) adopted effective February 20, 2014.)

1
2 **(e) Nominations**
3

4 (1) The ~~Conference of Court Executives~~ advisory committee must submit to the
5 ~~Court Executives Advisory Committee~~ nominations for each vacancy on the
6 ~~committee~~ Executive Committee. The ~~Court Executives Advisory Committee~~
7 Executive Committee will recommend three nominees for each ~~committee~~
8 Executive Committee vacancy from the nominations received and submit its
9 recommendations to the Executive and Planning Committee of the Judicial
10 Council. The list of nominees must enable the Chief Justice to appoint a
11 ~~committee~~ an Executive Committee that reflects a variety of experience,
12 expertise, and types locales (e.g., urban, suburban, and rural) that is
13 geographically balanced. Membership on this ~~committee~~ the Executive
14 Committee does not preclude appointment to any other advisory committee
15 or task force.
16

17 (2) The Executive Committee must review and recommend to the Executive and
18 Planning Committee of the Judicial Council the following:
19

20 (A) Members of the Executive Committee;
21

22 (B) Nonvoting court administrator members of the Judicial Council; and
23

24 (C) Members of other advisory committees who are court executives or
25 judicial administrators.
26

27 *(Subd (e) amended effective February 20, 2014; previously amended effective January 1,*
28 *2004, and January 1, 2007.)*
29

30 **(f) Chair and vice-chair**
31

32 The Chief Justice may appoint the chair and vice-chair of the advisory committee
33 for up to a two-year term from the current or incoming membership of the ~~Court~~
34 ~~Executives Advisory Committee~~ Executive Committee. The chair and vice-chair of
35 the advisory committee serve as the chair and vice-chair of the Executive
36 Committee established by subdivision (d).
37

38 *(Subd (f) amended effective February 20, 2014; previously amended effective January 1,*
39 *2004, January 1, 2007, and January 1, 2008.)*
40

41 **(g) Meetings**
42

1 The Executive Committee will meet approximately every two months, which
2 includes the statewide meetings with the advisory committee. The advisory
3 committee will meet during at least two statewide meetings per year.

4
5 *(Subd (g) adopted effective February 20, 2014.)*

6
7 *Rule 10.48 amended effective February 20, 2014; adopted as rule 6.48 effective January 1, 1999;*
8 *previously amended effective January 1, 2004; previously amended and renumbered effective*
9 *January 1, 2007; previously amended effective January 1, 2004, and January 1, 2008.*

10
11 **~~Rule 10.49. Conference of Court Executives~~**

12
13 **~~(a) Function~~**

14
15 ~~The functions of the Conference of Court Executives are to:~~

- 16
17 ~~(1) Increase the opportunities for court executive officers to participate in the~~
18 ~~Judicial Council decision-making process; and~~
19
20 ~~(2) Provide a forum for the education of court executives.~~

21
22 **~~(b) Duties~~**

23
24 ~~The Conference of Court Executives must:~~

- 25
26 ~~(1) Provide information and advice, when requested, to the Court Executives~~
27 ~~Advisory Committee; and~~
28
29 ~~(2) Conduct educational sessions for its members on matters related to court~~
30 ~~management, such as legislation, training, information management, judicial~~
31 ~~branch policy issues, professional development, best practices, and current~~
32 ~~issues facing the trial courts.~~

33
34 **~~(c) Membership~~**

35
36 ~~All court executive officers and clerk/administrators of the Courts of Appeal are~~
37 ~~members of the Conference of Court Executives. A court executive who is unable~~
38 ~~to participate in a meeting may designate his or her deputy to vote in his or her~~
39 ~~place.~~

40
41 **~~(d) Chair and vice-chair~~**

1 ~~The chair and vice chair of the Court Executives Advisory Committee are the chair~~
2 ~~and vice chair of the conference.~~

3
4 **~~(e) Executive Committee~~**

5
6 ~~The conference's Executive Committee is the Court Executives Advisory~~
7 ~~Committee. The Executive Committee must:~~

8
9 ~~(1) Establish the schedule and agenda for meetings; and~~

10
11 ~~(2) As necessary, appoint subcommittees consisting of principal and associate~~
12 ~~members of the conference.~~

13
14 **~~(f) Nominations subcommittee~~**

15
16 ~~The Court Executives Advisory Committee must submit to the Executive and~~
17 ~~Planning Committee of the Judicial Council nominations for members of the~~
18 ~~committee, the advisory members of the Judicial Council who are court executives,~~
19 ~~and members of other advisory committees who are court executives or judicial~~
20 ~~administrators.~~

21
22 **~~(g) Meetings~~**

23
24 ~~The conference must meet during at least two statewide meetings a year. One~~
25 ~~meeting must be held at the annual California Judicial Administration Conference.~~
26 ~~The conference must also meet at least two times a year by region for court~~
27 ~~administration updates, focused discussions, and educational opportunities.~~

28
29 **~~(h) Reimbursement for meetings~~**

30
31 ~~Reimbursement for meeting travel per diem expenses for conference members will~~
32 ~~be subject to availability of funds.~~

33
34 ~~Rule 10.49 repealed effective February 20, 2014; adopted as rule 6.49 effective January 1, 1999;~~
35 ~~previously amended effective January 1, 2004; previously amended and renumbered effective~~
36 ~~January 1, 2007.~~

37
38 **~~Rule 10.55. Access and Fairness Advisory Committee~~ on Providing Access and**
39 **Fairness**

40
41 **~~(a) Area of focus~~**

1 The committee makes recommendations for improving access to the judicial
2 system, ~~and~~ fairness in the state courts, diversity in the judicial branch, and court
3 services for self-represented parties.
4

5 *(Subd (a) amended effective February 20, 2014; previously amended effective January 1,*
6 *2007.)*
7

8 **(b) Additional duties**
9

10 In addition to the duties described in rule 10.34, the committee must recommend to
11 the Governing Committee of the Center for Judicial Education and Research,
12 proposals for the education and training of judicial officers and court staff.
13

14 *(Subd (b) amended effective February 20, 2014; previously amended effective January 1,*
15 *2007.)*
16

17 **(c) Membership**
18

19 The committee must include at least one member from each of the following
20 categories:
21

22 (1)–(3) * * *

23
24 (4) Lawyer with expertise or interest in additional access, fairness, and diversity
25 issues addressed by the committee;
26

27 ~~(4)(5) Other lawyer~~ Lawyer from a trial court self-help center;
28

29 (6) Legal services lawyer;
30

31 (7) Court executive officer or trial court manager who has experience with self-
32 represented litigants;
33

34 (8) County law librarian or other related professional;
35

36 ~~(5)(9)~~ Judicial administrator; and
37

38 ~~(6)(10)~~ Public member.
39

40 *(Subd (c) amended effective February 20, 2014; previously amended effective January 1,*
41 *2007.)*
42

1 **(d) Cochairs**

2
3 The Chief Justice appoints two advisory committee members to serve as cochairs.
4 Each cochair is responsible for leading the advisory committee's work in the
5 following areas:

6
7 (1) Physical, programmatic, and language access; fairness in the courts; and
8 diversity in the judicial branch; and

9
10 (2) Issues confronted by self-represented litigants and those of limited or
11 moderate income, including economic, education, and language challenges.

12
13 *(Subd (d) adopted effective February 20, 2014.)*

14
15 *Rule 10.55 amended effective February 20, 2014; adopted as rule 6.55 effective January 1, 1999;*
16 *previously amended and renumbered effective January 1, 2007.*

17
18 **Advisory Committee Comment**

19
20 The advisory committee's area of focus includes assisting courts to improve access and fairness
21 by recommending methods and tools to identify and address physical, programmatic, and
22 language access; fairness in the courts; and diversity in the judicial branch, as well as addressing
23 issues that affect the ability of litigants to access the courts including economic, education, and
24 language challenges. An additional responsibility of the advisory committee to recommend to the
25 council updated guidelines and procedures for court self-help centers, as needed, is stated in rule
26 10.960.

27
28 **Rule 10.62. Court Facilities Advisory Committee**

29
30 **(a) Area of focus**

31
32 The committee makes recommendations to the council concerning the judicial
33 branch capital program for the trial and appellate courts.

34
35 **(b) Membership**

36
37 The committee must include at least one member from each of the following
38 categories:

39
40 (1) Appellate court justice;

41
42 (2) Appellate court clerk/administrator;
43

- (3) Superior court judge;
- (4) Court executive officer;
- (5) Lawyer;
- (6) Local government official or administrator; and
- (7) Public member with expertise in real estate acquisition, construction, architecture, cost estimating, or facilities management and operations.

The committee also includes the chair and vice-chair of the Trial Court Facility Modification Advisory Committee, as non-voting members.

Rule 10.62 adopted effective February 20, 2014.

Rule 10.63. Advisory Committee on Financial Accountability and Efficiency for the Judicial Branch

(a) Area of focus

The committee makes recommendations to the council on practices that will promote financial accountability and efficiency in the judicial branch.

(b) Additional duties

In addition to the duties specified in rule 10.34, the committee must:

- (1) Make recommendations annually to the council concerning any budget change proposals for funding of the Administrative Office of the Courts (AOC) and any proposed changes to the annual compensation plan for the AOC;
- (2) Review all audit reports of the judicial branch, recommend council acceptance of audit reports, and, where appropriate, make recommendations to the council on individual or systemic issues;
- (3) Report to the council on AOC contracts that meet established criteria to ensure that the contracts are in support of judicial branch policy; and
- (4) Review proposed updates and revisions to the *Judicial Branch Contracting Manual*.

1 **(c) Membership**

2
3 The committee must include members in the following categories:

4
5 (1) Appellate court justices;

6
7 (2) Superior court judges; and

8
9 (3) Court executive officers.

10
11 The California Judges Association will recommend three nominees for a superior
12 court judge position and submit its recommendations to the Executive and Planning
13 Committee of the Judicial Council.

14
15 *Rule 10.63 adopted effective February 20, 2014.*

16
17 **Advisory Committee Comment**

18
19 The purpose of the Advisory Committee on Financial Accountability and Efficiency for the
20 Judicial Branch is to promote transparency, accountability, efficiency, and understanding of the
21 AOC and the judicial branch. The advisory committee fosters the best use of the work,
22 information, and recommendations provided by the AOC, and it promotes increased
23 understanding of the AOC's mission, responsibilities, accomplishments, and challenges.

24
25 **Rule 10.64. Trial Court Budget Advisory Committee**

26
27 **(a) Area of focus**

28
29 The Trial Court Budget Advisory Committee makes recommendations to the
30 council on the preparation, development, and implementation of the budget for the
31 trial courts and provides input to the council on policy issues affecting trial court
32 funding.

33
34 **(b) Additional duties**

35
36 In addition to the duties specified in rule 10.34, the committee may make
37 recommendations to the council on:

38
39 (1) Trial court budget priorities to guide the development of the budget for the
40 upcoming fiscal year;

1 (2) The allocation of trial court funding, including any changes to existing
2 methodologies for allocating trial court budget augmentations and reductions;
3 and

4
5 (3) Budget policies and procedures, as appropriate.

6
7 **(c) Membership**

8
9 (1) The advisory committee consists of an equal number of trial court presiding
10 judges and court executive officers reflecting diverse aspects of state trial
11 courts, including urban, suburban, and rural locales; the size and adequacy of
12 budgets; and the number of authorized judgeships.

13
14 (2) A presiding judge and court executive officer may be from the same court.

15
16 (3) The chairs of the Trial Court Presiding Judges Advisory Committee and the
17 Court Executives Advisory Committee serve as ex officio voting members.

18
19 (4) Notwithstanding rule 10.31(e), a presiding judge is qualified to complete his
20 or her term on the advisory committee even if his or her term as presiding
21 judge of a trial court ends.

22
23 (5) The Administrative Office of the Courts' chief of staff, chief administrative
24 officer, chief operating officer, and director of the fiscal services office serve
25 as non-voting members.

26
27 **(d) Cochairs**

28
29 The Chief Justice appoints a presiding judge and the Director of the Fiscal Services
30 Office to serve as cochairs.

31
32 *Rule 10.64 adopted effective February 20, 2014.*

33
34 **Rule 10.960. Court self-help centers**

35
36 **(a)–(d) * * ***

37
38 **(e) Guidelines and procedures**

39
40 The Administrative Office of the Courts, in collaboration with judges, court
41 executives, attorneys, and other parties with demonstrated interest in services to
42 self-represented litigants, must develop and disseminate guidelines and procedures

1 for the operation of court self-help centers to the trial courts by March 1, 2008. The
2 guidelines and procedures must address the following topics:

3
4 (1)–(10) * * *

5
6 ~~The Administrative Office of the Courts, in collaboration with judges, court~~
7 ~~executives, attorneys, and other parties with demonstrated interest in services to~~
8 ~~self-represented litigants, must review and update the guidelines and procedures at~~
9 ~~least every three years. The Advisory Committee on Providing Access and Fairness~~
10 ~~in the Courts must recommend to the council updated guidelines and procedures for~~
11 ~~court self-help centers, as needed.~~

12
13 *(Subd (e) amended effective February 20, 2014.)*

14
15 **(f)** * * *

16
17 *Rule 10.960 amended effective February 20, 2014; adopted effective January 1, 2008.*